

1.

| CASE #      | CASE NAME                                 | HEARING NAME          |
|-------------|-------------------------------------------|-----------------------|
| CVRI2404672 | NEWBERRY vs<br>RISHABH<br>INVESTMENT, LLC | DEMURRER ON COMPLAINT |

**Tentative Ruling:**

This case has a demurrer and motion to strike pending filed by the same party or parties where the hearing dates do not coincide. Pursuant to Cal. Rules of Court, rule 3.1322(b), when both a motion to strike and a demurrer are filed, the motion to strike “must be noticed for hearing and heard at the same time as the demurrer.” Accordingly, the Demurrer (earlier-calendared hearing) is continued to 7/29/2026 at 8:30 a.m. (the later-calendared hearing) so that they can be heard together.

2.

| CASE #      | CASE NAME     | HEARING NAME                           |
|-------------|---------------|----------------------------------------|
| CVRI2502206 | WALKER vs FAN | MOTION TO SET ASIDE CLERK'S<br>DEFAULT |

**Tentative Ruling:**

Hearing on this motion was vacated as moot in the Courts 7/13/2026 order granting the Plaintiffs request to file a Second Amended Complaint.

Below is the Court’s order from the **7/13/2026** hearing granting Plaintiffs’ request for file a Second Amended Complaint:

This motion is unopposed. Accordingly, the motion for leave to file a Second Amended Complaint is granted. Plaintiff is ordered to file the Second Amended Complaint within 10 days of this order and serve all parties.

Once the Second Amended Complaint is filed, it becomes the operative pleading and must be served on all Defendants, thus vitiating the Default entered on 11/26/2025 as to Defendant Kai Fan. Which makes the motion to set aside the default calendared for **7/27/2026** moot. The Court **will vacate the hearing set for 7/27/2026 and set aside the default of Kai Fan.**

The Case Management Conference set on 7/13/2026 is continued to **9/14/2026.**

Additionally, as a general rule, a trust is not a legal personality, and the trustee is the proper person to sue or be sued on behalf of such trust. However, a trustee's duties in connection with his or her office do not include the right to present argument in propria persona in courts of the state, because in this capacity the trustee would be representing interests of the beneficiaries and would therefore be engaging in the unauthorized practice of law in violation of Bus. & Prof. Code, § 6125. *Ziegler v. Nickel* (1998) 64 Cal.App.4th 545.

Section 6125 states, “No person shall practice law in California unless the person is an active member of the State Bar.” Under the statute, one who is not a licensed attorney cannot appear in court for another person. (*Russell v. Dopp* (1995) 36

Cal.App.4th 765, 774 [42 Cal.Rptr.2d 768]; Pickett v. Municipal Court (1967) 249 Cal.App.2d 844, 846

The Court issues an OSC to COREY WALKER, as Trustee of the New Beginnings Trust dated January 1, 2024, and as Trustee of LWY Riders LLC (a trust); and KEVIN WALKER, as Co- Trustee of the New Beginnings Trust dated January 1, 2024, and as Co- Trustee of LWY Riders LLC (a trust), as to why sanctions of up to \$1,500 or striking of its pleadings and dismissal should not be imposed for the failure to retain counsel.

A declaration under **RSC Local Rule 3116** is to be filed 5 court days prior to the next hearing on **9/14/2026**.